

25STCV25421 25STCV25421

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Case Number: 25STCV25421 Hearing Date: August 12, 2026 Dept: 406

RUILIAN HUANG,

Plaintiff,

v.

DAOMING WANG,

Defendants.

Case No.: 25STCV25421

Hearing Date: August 12, 2026

[TENTATIVE]

order RE:

plaintiff's motion for leave to file

second amended complaint

BACKGROUND

On August 29, 2025, Plaintiff

Ruilian Huang filed this action against Defendant Daoming Wang, Does 1 to 50,

and all persons claiming any interest in the subject real property. Plaintiff

filed the operative First Amended Complaint on November 20, 2025. The FAC

asserts claims for quiet title, fraud, breach of contract, and breach of

fiduciary duty. The FAC stems from the following allegations.

Plaintiff is a Chinese immigrant who recently arrived in the U.S. with little to no understanding of English. (FAC ¶ 7.) Plaintiff knew Defendant from a prior real estate transaction and knew Defendant was a real estate agent. (Ibid.) In July 2024, Defendant proposed that he and Plaintiff jointly purchase an investment property in Montebello. (Id., ¶ 8.) The parties orally agreed that Plaintiff would contribute \$1.3 million, while Defendant would contribute \$2 million, with profits split 50/50. (Id., ¶ 9.) Title was to be held in both parties' names, and Defendant would serve as the real estate agent for the transaction. (Ibid.)

Based on Plaintiff's limited English proficiency, Defendant proposed that Plaintiff execute a power of attorney, and Plaintiff agreed. (FAC ¶ 10.) Without Plaintiff's knowledge, Defendant used the power of attorney to borrow \$2.2 million in Plaintiff's name and used the funds as his contribution to the purchase, instead of using his own money as promised. (Id., ¶ 11.) This means the entirety of the property was purchased by Plaintiff, entitling Plaintiff to sole title. (Ibid.)

On June 24, 2026, Plaintiff filed the instant motion for leave to file a second amended complaint. Defendant filed an opposition on June 29, 2026. Plaintiff filed a reply on August 5, 2026.

LEGAL STANDARD

The court may, in furtherance of justice, and on such terms as may be proper, allow a party to amend any pleading. (Code Civ. Proc, §§ 473(a), 576.) Courts must apply a policy of liberality in permitting amendments at any stage of the proceeding, including during trial, when no prejudice to the opposing party is shown. (Duchrow v. Forrest (2013) 215 Cal.App.4th 1359, 1377.) In determining the extent of prejudice to the opposing party, the court must consider various factors, such as whether the amendment would delay trial or increase the discovery burden. (Demetriades v. Yelp, Inc. (2014) 228 Cal.App.4th 294, 306.)

A motion for leave to amend a complaint must be accompanied by a declaration that explains: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts

giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Ct., Rule 3.1324(b).)

DISCUSSION

The

proposed SAC eliminates the quiet title cause of action because Defendant transferred the subject property to Plaintiff, and then the property was sold at foreclosure. (Cheng Decl. ¶¶ 2, 4.) Moreover, the proposed SAC adds Plaintiff's husband as a plaintiff, adds an aiding and abetting cause of action, and names additional entities and individuals who allegedly helped Defendant defraud Plaintiff. (Id., ¶ 2.) Lastly, the proposed SAC clarifies certain facts to conform to proof. (Id., ¶ 3.) The amendment is necessary to ensure all claims arising from the same transaction are adjudicated in the same proceeding. (Id., ¶ 5.) The amendment was not made earlier because the facts giving rise to the amendment—i.e., the foreclosure which caused Plaintiff to lose the property—occurred in January 2026, and Defendant's bankruptcy filing stayed the action until May 2026. (Id., ¶¶ 4, 8.)

These

facts justify an amendment. Defendant's primary opposition is that the amendment is futile because the proposed claims are insufficiently pled. This motion is not the proper place to test the merits of the proposed complaint. Defendant may file a demurrer after the SAC is filed. This is not a reason to preclude the filing entirely. Defendant does not otherwise articulate any prejudice from the amendment. Having to file a demurrer is not prejudice.

CONCLUSION

Plaintiff's

motion for leave to file second amended complaint is GRANTED.